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8 **UNITED STATES DISTRICT COURT**
9 **CENTRAL DISTRICT OF CALIFORNIA – SOUTHERN DIVISION**

10 ChromaDex, Inc.,
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12 Plaintiff,

13 v.
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15 Elysium Health, Inc. and Mark Morris,

16 Defendants.
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18 And Related Counterclaims
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Case No. 8:16-cv-02277-CJC-DFM

**ORDER REGARDING REMAINING
BENCH TRIAL COUNTERCLAIMS
AND POST-TRIAL BRIEFING**

*Filed concurrently with Joint Stipulation
and Joint Status Report*

1 Pending before the Court is the Parties' Joint Stipulation Regarding Remaining Bench
2 Trial Counterclaims and Post-Trial Briefing. The Court HEREBY ORDERS as follows:

3 1. Elysium's counterclaim of unjust enrichment (Counterclaim 5) is hereby
4 dismissed without prejudice;

5 2. Elysium's counterclaim seeking a declaratory judgment of patent misuse
6 (Counterclaim 4) is hereby stayed pending resolution of ChromaDex's appeal of
7 *ChromaDex, Inc. and Trustees of Dartmouth College v. Elysium Health, Inc.*, No. 18-cv-
8 01434-CFC (the "Delaware Patent Action"), currently pending in the Federal Circuit as
9 *ChromaDex, Inc. v. Elysium Health, Inc.*, No. 2022-1116 (the "Federal Circuit Appeal").
10 The parties shall file a joint status report with this Court within 30 days of the issuance of the
11 Federal Circuit's mandate in, or other disposition of, the Federal Circuit Appeal.

12 3. With respect to ChromaDex's motion for prejudgment interest, the following
13 motion schedule shall apply:

14 a. ChromaDex's notice of motion and motion should be filed no later than
15 Monday, January 17, 2022;

16 b. Elysium's opposition brief should be filed no later than Monday, January
17 24, 2022;

18 c. ChromaDex's reply brief should be filed no later than Monday, January 31,
19 2022; and

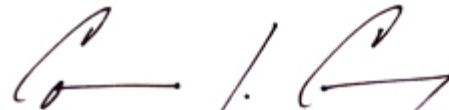
20 d. The hearing on ChromaDex's motion will be held on February 14, 2022, at
21 1:30 p.m.

22 4. The Court determines, pursuant to Fed. R. Civ. P. 54(b), that following its
23 decision on ChromaDex's prejudgment interest motion there will be no just reason for delay
24 of a final judgment regarding the claims and counterclaims tried to the jury. The Court will
25 direct entry of a final judgment on those claims and counterclaims on or after February 14,
26 2022, following its decision on ChromaDex's prejudgment interest motion.

1 5. Any post-trial motions due after the entry of judgment shall be filed pursuant to
2 the Federal Rules of Civil Procedure and the Local Rules for the Central District of
3 California.

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5 IT IS SO ORDERED.

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7 DATED: December 27, 2021

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10 Hon. Cormac J. Carney
11 United States District Judge
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